

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	04 – Economic Stability (ES)
	Part No./Name	C – Case Processing
	Section No./Name	C-100 FITAP-SNAP Household Determination
	Document No./Name	C-140-FITAP Who Is Not Included in the Assistance Unit
	Effective Date	October 1, 2017

I. STATEMENT OF POLICY

Do not include the following in the assistance unit:

- SSI recipients. Remove a FITAP family member from the grant when the person is certified for SSI. Do not count income or resources belonging only to the SSI recipient.
- INDIVIDUALS FLEEING TO AVOID PROSECUTION, CUSTODY OR CONFINEMENT AFTER CONVICTION FOR COMMITTING A CRIME OR ATTEMPTING TO COMMIT A CRIME THAT WOULD BE CLASSIFIED AS A FELONY (OR HIGH MISDEMEANOR IN NEW JERSEY) UNDER THE LAW OF THE PLACE FROM WHICH THE INDIVIDUAL IS FLEEING. This does not apply with respect to conduct of an individual, for any month beginning after the President of the United States grants a pardon with respect to the conduct. REFER TO [E-240-FITAP](#).
- INDIVIDUALS VIOLATING A CONDITION OF PROBATION OR PAROLE IMPOSED UNDER A FEDERAL OR STATE LAW. THE DETERMINATION THAT A PERSON HAS VIOLATED HIS OR HER PROBATION OR PAROLE CAN ONLY BE MADE BY THE LOUISIANA PAROLE BOARD OR THE COURT SYSTEM. This does not apply with respect to conduct of an individual, for any month beginning after the President of the United States grants a pardon with respect to the conduct. REFER TO [E-240-FITAP](#).
- Individuals found guilty of having made a fraudulent statement or representation with respect to residence in order to receive assistance simultaneously from two or more states are ineligible for a ten year period that begins on the date the individual is convicted in Federal or State Court. This does not apply if the President of the United States grants a pardon with respect to the conduct which was the subject of the conviction.

II. PROCEDURES

Add the eligible household member(s) to LAMI and exclude ineligible members from the FITAP household using the appropriate LAMI Inclusion/Exclusion Code and Inclusion/Exclusion Reason Code on the Register/Maintain Members by Case Screen.

III. FORMS AND INSTRUCTIONS

There are no forms associated with this policy.

IV. REFERENCES

[“Personal Responsibility and Work Opportunity Reconciliation Act of 1996”. H. R. 3734 -34; H. R. 3734 – 35](#)